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Expiration date: 03/31/2027

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory Massachusetts

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:34:15 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - o **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not limit all family co-payments to seven percent or less of family income, as required by 98.45(l)(3). (Plan Question 3.1.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Convene working group	06/04/2024
2	Submit waiver	11/15/2024
3	Review examples from other parent fee charts at lead agencies	02/28/2025
4	Clarify EEC's approach to meeting this requirement and create a project roadmap	05/31/2025
5	Draft changes to parent fee table	10/01/2025
6	Assess and confirm financial impact, include impacts in FY27 budget	10/30/2025
7	Update impacted policies	03/31/2026
8	Develop and test any technological changes	04/30/2026
9	Share changes with families and the field, incorporate feedback as appropriate	06/30/2026
10	Go live - implement change to parent fee table in systems and the field	08/01/2026

EQUAL ACCESS:PAYMENT PRACTICES

Reason(s) for non-compliance:

- The Lead Agency does not pay all provider types prospectively or alternatively does not demonstrate that it is not a generally-accepted practice for all provider types, as

required by 98.45(m)(1). (Plan Question 4.4.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 08/01/2026

Action Step Number	Action Step Description	Target Completion Date
1	Convene working group	06/04/2024
2	Submit waiver	11/15/2024
3	Explore examples of prospective payments at other lead agencies and research common payment practices in Massachusetts	10/03/2024
4	Confirm EEC's approach to prospective payments (including technological requirements) and create a project roadmap	06/30/2025
5	Calculate financial impacts and include financial impacts in FY27 budget	10/30/2025
6	Review and update impacted policies	11/30/2025
7	Develop and test any technological changes	03/31/2026
8	Share changes with EEC staff and providers, incorporate feedback as appropriate	05/31/2026
9	Implement change to provider payments in systems and the field	08/01/2026

EQUAL ACCESS:PAYMENT RATES

Reason(s) for non-compliance:

- The Lead Agency payment rates for preschoolers in center-based care and preschoolers in family child care homes are not sufficient to ensure equal access, as required by 98.45(a). (Plan Question 4.3.2a)

Overall Target Completion Date: 03/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Receive federal approval for alternative methodology for rate setting	01/05/2024
2	Contract with external research partner to carry out pre-approved alternative methodology to set payment rates	05/01/2024
3	Finalize workplan and develop research protocol	06/30/2024
4	Data collection and analyses for alternative methodology cost modeling	09/30/2024
5	Conduct stakeholder engagement	12/18/2024
6	Recommend rate increases using cost of care based on pre-approved alternative methodology	12/18/2024
7	Receive EEC Board approval for rate increases based on pre-approved alternative methodology	01/15/2025
8	Release policy advisory regarding rate change to the field	01/30/2025
9	Implement rate increases based on pre-approved alternative methodology	03/01/2025
10	Prepare and post summary report	03/31/2025

HEALTH AND SAFETY:ADMINISTRATION OF MEDICATION

Reason(s) for non-compliance:

- The Lead Agency's annual unannounced inspections for licensed centers and licensed family child care providers do not meet CCDF requirements because the Lead Agency's differential monitoring approach does not necessarily annually include enforcement of administration of medication standards, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1a ii and 5.5.1b ii)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
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1	Review examples from other states	02/01/2024
2	Confirm specific checklist items to update	07/01/2024
3	Partner with product management to develop business requirements for checklist updates	08/31/2024
4	Implement checklist changes in testing environment	09/30/2024
5	Test changes to checklists	12/31/2024
6	Share checklist changes with licensors	02/28/2025
7	Implement changes to checklists	04/30/2025

HEALTH AND SAFETY:BUILDING AND PHYSICAL PREMISES SAFETY

Reason(s) for non-compliance:

- The Lead Agency's annual unannounced inspections for licensed centers and licensed family child care providers do not meet CCDF requirements because the Lead Agency's differential monitoring approach does not necessarily annually include enforcement of building and physical premises safety standards, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review examples from other states	02/01/2024
2	Confirm specific checklist items to update	07/01/2024
3	Partner with product management to develop business requirements for checklist updates	08/31/2024
4	Implement checklist changes in testing environment	09/30/2024
5	Test changes to checklists	12/31/2024
6	Share checklist changes with licensors	02/28/2025
7	Implement changes to checklists	04/30/2025

HEALTH AND SAFETY:EMERGENCY PREPAREDNESS AND RESPONSE PLANNING

Reason(s) for non-compliance:

- The Lead Agency's annual unannounced inspections for licensed centers and licensed family child care providers do not meet CCDF requirements because the Lead Agency's differential monitoring approach does not necessarily annually include enforcement of emergency preparedness and response planning standards, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review examples from other states	02/01/2024
2	Confirm specific checklist items to update	07/01/2024
3	Partner with product management to develop business requirements for checklist updates	08/31/2024
4	Implement checklist changes in testing environment	09/30/2024
5	Test changes to checklists	12/31/2024
6	Share checklist changes with licensors	02/28/2025
7	Implement changes to checklists	04/30/2025

HEALTH AND SAFETY:HANDLING AND STORAGE OF HAZARDOUS MATERIALS AND DISPOSAL OF BIOCONTAMINANTS

Reason(s) for non-compliance:

- The Lead Agency's annual unannounced inspections for licensed centers and licensed family child care providers do not meet CCDF requirements because the Lead Agency's differential monitoring approach does not necessarily annually include enforcement of handling and storage of hazardous materials and disposal of biocontaminants standards, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review examples from other states	02/01/2024
2	Confirm specific checklist items to update	07/01/2024
3	Partner with product management to develop business requirements for checklist updates	08/31/2024
4	Implement checklist changes in testing environment	09/30/2024
5	Test changes to checklists	12/31/2024
6	Share checklist changes with licensors	02/28/2025
7	Implement changes to checklists	04/30/2025

HEALTH AND SAFETY:IDENTIFICATION AND REPORTING OF CHILD ABUSE

Reason(s) for non-compliance:

- The Lead Agency's annual unannounced inspections for licensed centers and licensed family child care providers do not meet CCDF requirements because the Lead Agency's differential monitoring approach does not necessarily annually include enforcement of identification and reporting of child abuse standards, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review examples from other states	02/01/2024
2	Confirm specific checklist items to update	07/01/2024
3	Partner with product management to develop business requirements for checklist updates	08/31/2024
4	Implement checklist changes in testing environment	09/30/2024

5	Test changes to checklists	12/31/2024
6	Share checklist changes with licensors	02/28/2025
7	Implement changes to checklists	04/30/2025

HEALTH AND SAFETY:POSTING INSPECTION REPORTS

Reason(s) for non-compliance:

- The Lead Agency does not post pre-licensing inspection reports for licensed family child care providers and licensed centers, as required by 98.33(a)(4). (Plan Question 5.5.4ai)

Overall Target Completion Date: 04/01/2025

Action Step Number	Action Step Description	Target Completion Date
1	Partner with product management to develop business requirements for posting preservice visits online	08/01/2024
2	Share needed changes in LEAD with product management	10/31/2024
3	Develop pre-service visit updates in LEAD testing environment	12/31/2024
4	Test preservice visit changes	01/31/2025
5	Share changes with licensing staff and the field	02/28/2025
6	Implement change	04/01/2025

HEALTH AND SAFETY:PRECAUTIONS IN TRANSPORTING CHILDREN

Reason(s) for non-compliance:

- The Lead Agency's annual unannounced inspections for licensed centers and licensed family child care providers do not meet CCDF requirements because the Lead Agency's differential monitoring approach does not necessarily annually include enforcement of

precautions in transporting children standards, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review examples from other states	02/01/2024
2	Confirm specific checklist items to update	07/01/2024
3	Partner with product management to develop business requirements for checklist updates	08/31/2024
4	Implement checklist changes in testing environment	09/30/2024
5	Test changes to checklists	12/31/2024
6	Share checklist changes with licensors	02/28/2025
7	Implement changes to checklists	04/30/2025

HEALTH AND SAFETY:PREVENTION AND CONTROL OF INFECTIOUS DISEASES

Reason(s) for non-compliance:

- The Lead Agency's annual unannounced inspections for licensed centers and licensed family child care providers do not meet CCDF requirements because the Lead Agency's differential monitoring approach does not necessarily annually include enforcement of prevention and control of infectious diseases (including immunization) standards, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review examples from other states	02/01/2024
2	Confirm specific checklist items to update	07/01/2024

3	Partner with product management to develop business requirements for checklist updates	08/31/2025
4	Implement checklist changes in testing environment	09/30/2024
5	Test changes to checklists	12/31/2024
6	Share checklist changes with licensors	02/28/2025
7	Implement changes to checklists	04/30/2025

HEALTH AND SAFETY:PREVENTION AND RESPONSE TO EMERGENCIES FROM FOOD AND ALLERGIC REACTIONS

Reason(s) for non-compliance:

- The Lead Agency's annual unannounced inspections for licensed centers and licensed family child care providers do not meet CCDF requirements because the Lead Agency's differential monitoring approach does not necessarily annually include enforcement of prevention and response to emergencies from food and allergic reactions standards, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review examples from other states	02/01/2024
2	Confirm specific checklist items to update	07/01/2024
3	Partner with product management to develop business requirements for checklist updates	08/31/2024
4	Implement checklist changes in testing environment	09/30/2024
5	Test changes to checklists	12/31/2024
6	Share checklist changes with licensors	02/28/2025
7	Implement changes to checklists	04/30/2025

HEALTH AND SAFETY:PREVENTION OF SHAKEN BABY SYNDROME, ABUSIVE HEAD TRAUMA, AND CHILD MALTREATMENT

Reason(s) for non-compliance:

- The Lead Agency's annual unannounced inspections for licensed centers and licensed family child care providers do not meet CCDF requirements because the Lead Agency's differential monitoring approach does not necessarily annually include enforcement of prevention of shaken baby syndrome, abusive head trauma, and child maltreatment standards, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review examples from other states	02/01/2024
2	Confirm specific checklist items to update	07/01/2024
3	Partner with product management to develop business requirements for checklist updates	08/31/2024
4	Implement checklist changes in testing environment	09/30/2024
5	Test changes to checklists	12/31/2024
6	Share checklist changes with licensors	02/28/2025
7	Implement changes to checklists	04/30/2025

HEALTH AND SAFETY:RATIOS AND GROUP SIZE FOR CCDF PROVIDERS

Reason(s) for non-compliance:

- The Lead Agency's annual unannounced inspections for licensed centers and licensed family child care providers do not meet CCDF requirements because the Lead Agency's differential monitoring approach does not necessarily annually include the enforcement of ratio and group size standards, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review examples from other states	02/01/2024
2	Confirm specific checklist items to update	07/01/2024
3	Partner with product management to develop business requirements for checklist updates	08/31/2024
4	Implement checklist changes in testing environment	09/30/2024
5	Test changes to checklists	12/31/2024
6	Share checklist changes with licensors	02/28/2025
7	Implement changes to checklists	04/30/2025

HEALTH AND SAFETY:SUDDEN INFANT DEATH SYNDROME AND SAFE SLEEP

Reason(s) for non-compliance:

- The Lead Agency's annual unannounced inspections for licensed centers and licensed family child care providers do not meet CCDF requirements because the Lead Agency's differential monitoring approach does not necessarily annually include enforcement of sudden infant death syndrome and safe sleep standards, as required by 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii and 5.5.1bii)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review examples from other states	02/01/2024
2	Confirm specific checklist items to update	07/01/2024
3	Partner with product management to develop business requirements for checklist updates	08/31/2024
4	Implement checklist changes in testing environment	09/30/2024
5	Test changes to checklists	12/31/2024
6	Share checklist changes with licensors	02/28/2025

7	Implement changes to checklists	04/30/2025
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**COMPREHENSIVE BACKGROUND CHECK:PRE-SERVICE CHECK REQUIREMENTS
(PROVISIONAL HIRE)**

Reason(s) for non-compliance:

- The Lead Agency allows the prospective staff member to work unsupervised before receiving a qualifying result on the comprehensive background check requirements, as required by 98.43(d)(4). (Plan Question 5.7.12i)

Overall Target Completion Date: 04/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review current requirements and additional clarification	03/30/2025
2	Reassess the current policy to determine any updates or changes. EEC's current policy is that a provisional status window can conclude at the end of 14 days if the candidate has a satisfactory in-state background check and federal fingerprint check. EEC requires that prior to working with children in a provisional status, prospective staff members must have satisfactory results on fingerprint-based criminal background record checks and SORI checks. Presently, if EEC does not receive results from another state related to a candidate's criminal or child welfare information within 14 days, EEC will find the candidate suitable for employment or affiliation with an EEC licensed and/or funded program if all Massachusetts background checks are satisfactory.	04/30/2025

**LEAD AGENCY RESPONSIBILITIES:PROGRAM ADMINISTRATION, PLAN DEVELOPMENT,
AND PROGRAM/FUNDING COORDINATION**

Reason(s) for non-compliance:

- The Lead Agency does not have clear governance processes to oversee administrative and implementation responsibilities undertaken by other agencies involved in implementing the CCDF program, as required by 98.11(a)(3). (Plan Questions 1.2.3a, 1.2.3b, and 1.2.3d)

Overall Target Completion Date: 05/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	Review current MOUs and identify areas of improvement	02/28/2024
2	Confirm policies to reference in MOUs	03/31/2024
3	Draft and review revisions to MOUs	01/31/2025
4	Discuss updated MOUs with DCF and DTA	03/14/2025
5	Finalize and execute MOUs	05/30/2025